

FILED BY: KILROY REALTY 303, LLC

TENTATIVE RULING:

Please see Line 10.

12. 9:00 AM CASE NUMBER: C25-02263

**CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A
DELAWARE LIMITED LIABILITY COMPANY**

**HEARING ON ORDER TO SHOW CAUSE IN RE: PRELIMINARY INJUNCTION SET AT EXPARTE HEARING
ON 08.20.2025 BY THE COURT**

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Thomas Goddard's Application for TRO and Order to Show Cause for Preliminary Injunction.

Plaintiff's request for a preliminary injunction is **denied**.

Initial Procedural Note

Papers at Issue

Plaintiff appeared *ex parte* on August 20, 2025, seeking a TRO and an OSC regarding a preliminary injunction. Defendants filed an opposition to the TRO request along with a declaration in support. Plaintiff also filed a reply.

On that date, the Court denied the TRO and set the hearing on the OSC for January 8, 2026. The Court also set a briefing schedule indicating that Defendants shall file and serve any opposition papers re the OSC no later than nine court days prior to the hearing – *i.e.* by December 24, 2025. The Court notes that as of the drafting of this tentative ruling, well past the December 24 deadline, no subsequent briefing was filed by Defendants. As such, this ruling is based on the papers submitted by the Parties on August 20, 2025.

Plaintiff's Filings

On a related note, the Court notes that Plaintiff's initial moving papers refer and cite to numerous exhibits. It also indicates that it 'incorporates by reference' the entire case files for four separate cases. (See Memo at Sec. II Incorporation by Reference.) None of the documents identified were actually attached to the filing, nor filed concurrently therewith. A document titled "Exhibit XXXXX For Complaint" was filed on August 19 – which appears to be referenced in the moving papers. After the ruling by the Court on the TRO on August 20, Plaintiff filed three other documents. None of those documents appear to attach the numerous exhibits referenced in the moving papers.

The Court also notes that several of Plaintiff's filings are hundreds of pages long and appear to include duplicate or triplicate copies of the document to be filed. For example, the First Amended Ex Parte Application for TRO filed on August 20, 2025, includes three copies of the same papers. This increases the Court's workload in deciphering Plaintiff's papers.

The Court will not consider papers not filed with the moving papers. Plaintiff shall ensure going

forward that all relevant evidence, exhibits, and arguments are included in a single or concurrent filing. Plaintiff will also ensure that he is only filing a single copy of his papers and will not include duplicate documents.

Legal Citations and Arguments

The Court notes that in reviewing Plaintiff's papers that many of Plaintiff's citations are incorrect and/or misleading. Plaintiff will cite a case for a certain proposition for which it does not stand. More worrisome is Plaintiff's citation to cases which include quotations from the case which do not exist. For example, Plaintiff states: "In *Salute v. Statford Greens Garden Apartments*, 136 F.3d 293, 301 (2d Cir. 1998), the Second Circuit recognized that 'financial need that is a consequence of the disability' must be considered in accommodation analysis." (Ex parte at 5:10-12.) That statement does not appear anywhere in the opinion. Nor does that proposition – so far as the Court has been able to find. In footnote 5, Plaintiff provides another quotation allegedly from the same case – which does not appear anywhere in the opinion.

Other examples include Plaintiff's citation to: *Smith & Lee Associates, Inc. v. City of Taylor* 102 F.3d 781, 795 (6th Cir. 1996) ('Reasonable accommodations must sometimes be made to policies which are generally applicable and facially neutral.');

McKennon v. Nashville Banner Publishing Co., 513 U.S. 352, 358 (1995) (civil rights violators cannot 'take advantage of the very violation to defeat the employee's rights');

Chalk v. U.S. District Court 840 F.2d 701, 707 (9th Cir. 1988) (finding 'strong likelihood of success on the merits' where defendant's policy facially violated federal disability law.);

Sundance Land Corp. v. Community First Federal Savings & Loan 840 F.2d 653, 661 (9th Cir. 1988) ("The Ninth Circuit recognizes that 'threatened loss of one's home constitutes irreparable injury.');

Easley v. Collection Service of Nevada, 910 F.3d 1286, 1291 (9th Cir. 2018) ("documentary evidence of discrimination supports finding of likelihood of success.")

None of the above quotes appear in the cases cited by Plaintiff.

It is sanctionable conduct for a party to submit briefing that contains fabricated quotations and/or fabricated cases. (*Shayan v., Shakib* (2025) 116 Cal.App.5th 619, 624 (citing *People v. Alvarez* (2025) 114 Cal.App.5th 1115; *Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426.) While those cases involved attorneys submitting improper authority, pro se parties are held to the same standards and must comply with the same rules as attorneys. (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 ["[J]udges are not required to act as counsel for self-represented part[ies], instead, self-represented litigants "must expect and receive the same treatment as if represented by an attorney – no different, no better, no worse."], quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009.)

Plaintiff shall ensure that all his citations to legal authority actual stand for the proposition asserted and actually contain the quotations attributed to them.

Factual Allegations and Procedural Background

The focus of this matter is a dispute between a tenant (Plaintiff) and his landlord (Defendants). Plaintiff resides at an apartment located at 1910 N. Main Street, Unit 627, in Walnut Creek, California ("Property"). Defendant 1910 N. Main Street Apartments Capital LLC ("1910 Apartments") owns the

Property and Defendant Sares Regis Group Residential, Inc. (“Sares”) manages it.

On March 3, 2025, Plaintiff made a “Reasonable Accommodation Request” seeking to have the due date for his rent moved from the first of the month to the seventh of the month due to the timing of his receipt of SDI benefits. Defendants granted this request. (Richardson Decl. ¶ 4, Ex. A.) Despite this accommodation, Plaintiff missed making his rent payments in a timely manner. Defendants engaged in communications with Plaintiff regarding the late payments.

Due to Plaintiff’s continued failure to pay rent, Defendants served him with a 3-day notice to pay or quit on July 10, 2025. That same date, Defendants sent a letter to Plaintiff encouraging him to continue to engage in a dialogue regarding his payment of rent. Plaintiff responded the same day by requesting that his rent be reduced from \$2,850/month to \$400/month.

Thereafter, on July 14, 2025, Plaintiff filed a Complaint against Defendants (and two individuals) in Federal District Court alleging violations of the Federal Fair Housing Act, Civil Rights Act, ADA, and California’s Unruh Act. (Truong Decl. ¶ 2, Ex. 1.) The basis of the Federal Case tracks the issues in the instant case – alleged discrimination related to Plaintiff’s request for an accommodation regarding rent. The Federal Court issued a limited TRO on July 16. On August 13, 2025, the Federal Court held a hearing regarding Plaintiff’s request for a preliminary injunction. The Court denied the request and lifted the TRO. (Truong Decl. ¶ 1, 4; Ex. 4.) On that same date, Plaintiff immediately filed a motion for reconsideration as well as an appeal to the Ninth Circuit. (*Id.* at ¶ 3.)

On August 15, 2025, Plaintiff filed the Complaint in this instant matter. The Complaint alleges twelve causes of action. Notably, the first (Fair Housing Act – disability discrimination), third (fair housing Act – retaliation), and fifth (Unruh Civil Rights Act) causes of action are also alleged in the Federal case cited above.

On November 17, 2025, Defendant 1910 Apartments initiated an unlawful detainer action against Plaintiff. On December 8, 2025, Plaintiff filed a First Amended Complaint adding three more causes of action.

Standard

Generally, the ruling on an application for preliminary injunction rests in the sound discretion of the trial court. (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450.) In deciding whether to issue a preliminary injunction, a court must weigh two “interrelated” factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. (*Butt v. State of California* (1992) 4 Cal. 4th 668, 677-678.) This determination is made on a sliding-scale such that “the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (*Id.* at 678.) “However, ‘[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is a possibility that the plaintiff would ultimately prevail on the merits of the claim.’” (*Ibid.*)

“The power to issue preliminary injunctions is an extraordinary one and should be exercised with great caution and only where it appears that sufficient cause for hasty action exists.” (*West v. Lind* (1960) 186 Cal.App.2d 563, 565.) They should only be issued when there is a “clear showing that the threatened and impending injury is great, and can be averted only by injunction.” (*Western Electroplating Co. v. Henness* (1959) 172 Cal.App.2d 278, 283.)

The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell v. Sup.Ct. (Valenzuela)* (2006) 141 Cal. 4th 1452, 1481.)

Analysis

Relief Sought Not Available

To begin with, it appears that Plaintiff cannot obtain much of the relief he is seeking since the actions he is seeking to be restrained have already occurred. For example, Plaintiff seeks an order preventing Defendants from initiating or prosecuting any unlawful detainer action against Plaintiff. As noted above, Defendant 1910 Apartments already initiated an unlawful detainer action against Plaintiff.

Other actions requested by Plaintiff also appear to already be in place without the Court's order. For instance, Plaintiff requests an order preventing Defendants from accepting his rent payments on the 7th of each month and imposing a late fee if paid by that date. The evidence presented shows that Defendants already agreed to that accommodation. Despite that agreement, it appears that Plaintiff has failed to make any payment of rent since that time.

Likelihood to Prevail

Initially, as to the three causes of action noted that are also asserted in the Federal Action, it appears that this Court does not have jurisdiction to rule on those claims. "The established rule of exclusive concurrent jurisdiction provides that where two or more courts possess concurrent subject matter jurisdiction over a cause, the court that first asserts jurisdiction assumes it to the exclusion of all other courts. In essence, the rule renders concurrent jurisdiction exclusive with the first court." (*County of Siskiyou v. Superior Court* (2013) 217 Cal.App.4th 83, 89 citing *Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal.App.4th 1168, 1175.)

As noted by Defendants, the basis of most of Plaintiff's claims is the allegation that Defendants denied him a reasonable accommodation regarding his inability to pay rent on time – which was discriminatory. The evidence, however, shows that Defendants did in fact grant his initial accommodation request. As noted above, Plaintiff submitted a request indicating that he be given an accommodation to pay his rent on the 7th of each month, instead of the 1st, without incurring a penalty. This was due to the timing of his receipt of SDI payments. The Defendants granted this accommodation, writing to Plaintiff: "We agree to allow you to pay your rent on the 7th of each month. We will waive the \$75 late fee and refrain from serving a 3-day notice if your rent is paid by the 7th." (Richardson Decl. Ex. A.) Thereafter, Plaintiff failed to make any payment for rent. (Richardson Dec. ¶ 5.)

To the extent that Plaintiff is arguing that his additional request to lower his rent from \$2,850 to \$400 a month is the basis for his claims, this Court agrees with the assessment of the Federal Court which addressed this argument in Plaintiff's request for a preliminary injunction there:

"However, the record before this Court shows that Defendant accommodated Plaintiff's initial request to extend his grace period for rent payments. Plaintiff then sought to reduce his rent by over 85%, which Defendant denied. Plaintiff has presented no authority, and the Court is aware of none, holding that an 85% reduction in rent is a 'reasonable accommodation' under the ADA. Indeed, the Ninth Circuit has held that denial of 'meaningful access' to a program due to a person's inability to 'satisfy a condition of eligibility because of his financial circumstances' is not a violation of the ADA. See *Weinreich v. Los Angeles Cnty. Metro. Transp. Auth.*, 114 F.3d 976, 979 (9th Cir. 1997). (Truong Decl. Ex. 4.)

Regarding the claim for religious discrimination, Plaintiff has failed to show that anyone associated with the Defendant has acted in a manner to support his claims. All the allegations related to the alleged religious discrimination claims related to statements alleged made by Shabnam Amiri – who is described as the Property Manager in the Complaint. Plaintiff presents no additional evidence showing that Ms. Amiri works for Defendants.

Defendants submit the declaration of Tammy Richardson, who is the Regional Property Manager for Defendant Sares and who manages the Property. Ms. Richardson makes clear that no person named Shabnam Amiri currently works for, or has ever worked for, Defendants and that she is “not aware of any affiliation with this person as an employee or resident.” (Richardson Decl. ¶ 10.) Defendants also note that Plaintiff indicated in his motion for a preliminary injunction filed in the Federal Case that Ms. Amiri is Plaintiff’s ex-girlfriend. (Truong Decl. Ex. 2.)

As for the breach of habitability and quiet enjoyment claims, the Complaint is unclear as to the basis for those claims. It appears that Plaintiff’s claims rest on his claim that Defendants intend to evict him in violation of his rights. This appears to be based on the service of the 3-day notice to quit. As outlined above, Defendants were entitled to serve the 3-day notice to quit based on Plaintiff’s continued failure to pay rent. As such, this act cannot form the basis for such causes of action. It is also worth noting that the service of a 3-day notice to quit is generally considered a privileged action. (See e.g. *Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467, 1480.)

Likewise, Plaintiff’s emotional distress and constructive eviction claims appear to rely on Defendant’s protected activity in serving a 3-day notice to quit. To the extent they are premised on the alleged religious discrimination, those claims are addressed above – and indicate that Plaintiff has failed to show that Defendants are the source of Plaintiff’s alleged harassment.

Based on the above, Plaintiff has failed to meet his burden to show that he is likely to prevail on the merits of his claims. The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O’Connell, supra*, 141 Cal. 4th at 1481.) An injunction will not issue if it appears the plaintiff will not prevail. (*SB Liberty, LLC v. Isla Verde Ass’n, Inc.* (2013) 217 Cal.App.4th 272, 280.)

No Showing of Irreparable Harm to Plaintiff

The court may “deny a preliminary injunction *either* (1) on its finding irreparable injury will not result to the party seeking the injunction, or (2) that the party has failed to demonstrate a reasonable probability of success on the merits.” (*Jessen v. Keystone Sav. & Loan Ass’n* (1983) 142 Cal.App.3d 454, 459.)

“The showing of potential harm that a plaintiff must make in support of a request for preliminary injunctive relief may be expressed in various linguistic formulations, such as the inadequacy of legal remedies or the threat of irreparable injury [cite], but whether the choice of words it is clear that a plaintiff must make some showing which would support the exercise of the rather extraordinary power to restrain the defendant’s actions prior to a trial on the merits.” (*Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd.* (1994) 23 Cal.App.4th 1459, 1471.) “In general, if the plaintiff may be fully compensated by the payment of damages in the event he prevails, then preliminary injunctive relief should be denied.” (*Ibid.*; see also, Cal. Code Civ. Proc. § 526 (a)(4) [“An injunction may be granted in the following cases: (4) When pecuniary compensation would not afford adequate relief.”].

Plaintiff appears to argue that the irreparable harm he will suffer is homelessness if he is evicted from his apartment. The possession of the Property, however, is not at issue in this matter. That is the focus of the currently pending unlawful detainer action. As noted by the Federal Court, "Plaintiff will have the opportunity to assert his rights and defenses," including his ADA claims, in that action.

The prayer for relief in the operative First Amended Complaint does not seek any order related to the possession of the Property. Instead, it seeks compensatory damages (§ 125), statutory damages (§ 126), punitive damages (§ 127) and 'injunctive relief' (§ 128). The injunctive relief sought includes: (1) institutional reforms to accommodation policies; (2) fair housing training for all employees; (3) monitoring of civil rights compliance; and (4) remediation of hostile environment.

By way of this complaint, Plaintiff is principally seeking damages and all the claims made therein – if proved – can be fully compensated via an award of damages. Accordingly, Plaintiff has failed to show that he will be irreparably harmed if a preliminary injunction does not issue.

Conclusion

"The power to issue preliminary injunctions is an extraordinary one and should be exercised with great caution and only where it appears that sufficient cause for hasty action exists." (*West*, supra, 186 Cal.App.2d at 565.) They should only be issued when there is a "clear showing that the threatened and impending injury is great, and can be averted only by injunction." (*Western Electroplating Co.*, supra, 172 Cal.App.2d at 283.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell*, supra, 141 Cal. 4th at 1481.)

Plaintiff has failed to meet his burden to show that a preliminary injunction should issue. For all the reasons set forth above, Plaintiff's request is **denied**.

13. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO DAVID J. DICKENS FOR PLTF
RICHARD CLASEN
FILED BY: CLASEN, COLLEEN R.
TENTATIVE RULING:
Granted.

14. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO STACHIA REUWSAAT FOR DEF
SYNGENTA
FILED BY: SYNGENTA AG
TENTATIVE RULING:
Granted, subject to submission of proof that the application was submitted to the State Bar.

15. 9:00 AM CASE NUMBER: MSC18-00956
CASE NAME: EUBANKS VS YAPSTONE
***HEARING ON MOTION IN RE: RE: COMPLIANCE HEARING**
FILED BY: